

M/S Mohan Elctro Casting Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 27 April 2016 · Writ-C No. 51214 of 2006 · **Writ dismissed as infructuous; liberty if cause survives.**

HEADNOTE

Writ originally challenging Clause 4.20(g) of the U.P. Electricity Supply Code, 2005, later confined to interest on security, dismissed as infructuous after Registry listing with no objection; liberty reserved if the cause of action survives.

FACTUAL SUMMARY

M/S Mohan Elctro Casting Pvt. Ltd. sued Paschimanchal Vidyut Vitran Nigam Limited in 2006. On 19 February 2016 counsel did not press Prayer-A, which sought to declare Clause 4.20(g) of the U.P. Electricity Supply Code, 2005 invalid, and confined the writ to interest on the security deposit under a Government Order dated 10 September 2013. Time was given to file that order and, later, a supplementary affidavit. The Registry then listed the petition as likely infructuous.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

infructuous listing

HOLDING

The Registry classified and listed the writ as likely infructuous and invited objections; none were received. The Court dismissed the petition as infructuous, with liberty to move an appropriate application if the cause of action survives, and with no order as to costs. ¶ 1

PRINCIPLE TAGS

s47-4-interest-on-security-at-bank-rate-from-enactment Writ originally challenging Clause 4.20(g) of the U.P. Electricity Supply Code, 2005, later confined to interest on security, dismissed as infructuous after Registry listing with no objection; liberty reserved if the cause of action survives. ¶ 1

writ-dismissed-as-infructuous-with-liberty-to-move-afresh Writ originally challenging Clause 4.20(g) of the U.P. Electricity Supply Code, 2005, later confined to interest on security, dismissed as infructuous after Registry listing with no objection; liberty reserved if the cause of action survives. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF CLAUSE 4.20(G) OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Prayer-A not pressed on 19.2.2016; never decided. ¶ 1

NOT DECIDED — INTEREST ON SECURITY DEPOSIT UNDER G.O. DATED 10 SEPTEMBER 2013

Writ was confined to this claim but dismissed as infructuous without a merits ruling. ¶ 1